

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1601

By: Gise

AS INTRODUCED

An Act relating to schools; amending Section 1, Chapter 291, O.S.L. 2023 (70 O.S. Supp. 2024, Section 6-104.8), which relates to paid maternity leave; allowing sick leave use to extend maternity leave for certain employees; specifying uses; requiring sufficient leave accrual; requiring notification and concurrent use with the Family and Medical Leave Act; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 291, O.S.L. 2023 (70 O.S. Supp. 2024, Section 6-104.8), is amended to read as follows:

Section 6-104.8. A. 1. Full-time employees of a public school district in this state who have been employed by the school district for at least one year and have worked at least one thousand two hundred fifty (1,250) hours during the preceding twelve-month period;

2. Persons employed full time as classroom instructional employees of technology center school districts supervised by the State Board of Career and Technology Education who have been

1 employed by the technology center school district for at least one
2 year and have worked at least one thousand two hundred fifty (1,250)
3 hours during the preceding twelve-month period;

4 3. Persons employed as teachers by the State Department of
5 Rehabilitation Services who have been employed by the State
6 Department of Rehabilitation Services for at least one year and have
7 worked at least one thousand two hundred fifty (1,250) hours during
8 the preceding twelve-month period;

9 4. Persons employed full time as correctional teachers or
10 vocational instructors by the Department of Corrections pursuant to
11 Section 510.6a of Title 57 of the Oklahoma Statutes who have been
12 employed by a Department of Corrections facility for at least one
13 year and have worked at least one thousand two hundred fifty (1,250)
14 hours during the preceding twelve-month period; and

15 5. Persons employed full time as teachers by the Office of
16 Juvenile Affairs who have been employed by an Office of Juvenile
17 Affairs facility for at least one year and have worked at least one
18 thousand two hundred fifty (1,250) hours during the preceding
19 twelve-month period,
20 shall be entitled to six (6) weeks of paid maternity leave following
21 the birth of the employee's child. The six (6) weeks of paid
22 maternity leave shall be used immediately following the birth of the
23 school district employee's child.

1 B. 1. Paid maternity leave provided pursuant to paragraphs 1,
2 2, and 3 of subsection A of this section shall be in addition to and
3 not in place of sick leave due to pregnancy, as authorized by
4 Section 6-104 of Title 70 of the Oklahoma Statutes.

5 2. Paid maternity leave provided pursuant to paragraph 4 of
6 subsection A of this section shall be in addition to and not in
7 place of sick leave due to pregnancy, as authorized by Section
8 510.6a of Title 57 of the Oklahoma Statutes.

9 3. Paid maternity leave provided pursuant to paragraph 5 of
10 subsection A of this section shall be in addition to and not in
11 place of sick leave due to pregnancy, as authorized by Section 2-7-
12 202 of Title 10A of the Oklahoma Statutes.

13 C. 1. Employees described in subsection A of this section
14 shall have the right to utilize accrued sick leave to extend the
15 duration of their maternity leave beyond the six (6) weeks provided
16 by this section. Such sick leave may be used for recovery from
17 childbirth, bonding with a newborn, or caring for a newborn, and
18 shall not require additional approval from a school board or
19 employer, provided the employee has sufficient sick leave to cover
20 the extended duration.

21 2. An employee seeking to use sick leave to extend the duration
22 of their maternity leave shall notify their employer in accordance
23 with the Family and Medical Leave Act of 1993 (FMLA). FMLA leave
24 shall run concurrently with the paid sick leave extended duration.

1 D. An employee who takes maternity leave pursuant to the
2 provisions of subsection A of this section shall not be deprived of
3 any compensation or other benefits to which the employee is
4 otherwise entitled.

5 ~~D.~~ E. Each fiscal year, the Legislature shall appropriate
6 adequate funding to the Public School Paid Maternity Leave Revolving
7 Fund created in Section 7 6-104.9 of this ~~act~~ title for the purpose
8 of providing paid maternity leave to eligible school district
9 employees pursuant to paragraph 1 of subsection A of this section.
10 If the Legislature does not appropriate adequate funding
11 specifically for the purpose of providing paid maternity leave to
12 school district employees, the State Board of Education shall
13 allocate from the funds appropriated to the State Board of Education
14 for the support of public school activities an amount to fully fund
15 paid maternity leave.

16 ~~E.~~ F. The State Board of Education, the State Board of Career
17 and Technology Education, the Commission for Rehabilitation
18 Services, the State Board of Corrections, and the Board of Juvenile
19 Affairs may promulgate rules to implement the provisions of this
20 section.

21 SECTION 2. This act shall become effective November 1, 2025.
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